

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
PENY & CO., L.L.C.,

Plaintiff,

v.

PFC ASTOR ROW HOUSING DEVELOPMENT
FUND CORPORATION; THE CITY OF NEW
YORK, ACTING THROUGH ITS DEPARTMENT
OF HOUSING PRESERVATION AND
DEVELOPMENT; JP MORGAN CHASE BANK,
NA; THE CITY OF NEW YORK
ENVIRONMENTAL CONTROL BOARD; NEW
YORK STATE DEPARTMENT OF TAXATION
AND FINANCE; NEW YORK CITY
DEPARTMENT OF FINANCE,Defendants.
-----X

: Index No. 850350/2024

: **NOTICE OF SALE**: **Mortgaged Property:**: 60-62 West 130th Street
: New York, New York
: Block 1727, Lot 67
: (Old Lots 67 and 68)

Pursuant to a Judgment of Foreclosure and Sale signed by the Honorable Francis A. Kahn, III, J.S.C. on January 16, 2026, and filed by the New York County Clerk's Office on March 9, 2026 (NYSCEF Doc. No. 102) (the "Judgment"), Christy M. Demelfi, Esq., the Referee, duly appointed in this action for such purpose, will sell in one parcel at public auction to be held at the New York County Courthouse, 60 Centre Street, New York, New York, on **June 2, 2026 at 2:15 p.m.** (which was adjourned from an original sale date of May 12, 2026 at 2:15 p.m.) the following premises as described by the Judgment:

ALL that certain plot, piece or parcel of land, situate, lying and being in the Borough of Manhattan, City, County, and State of New York, bounded and described as follows:

BEGINNING at a point on the southerly side of W. 130th Street, distant 85 feet easterly from the corner formed by the intersection of the easterly side of Lenox Avenue with the southerly side of W. 139th Street;

RUNNING THENCE southerly parallel with Lenox Avenue, 99.92 feet (99 feet 11 inches) to a point;

THENCE easterly parallel with W. 130th Street, 50 feet to a point;

THENCE northerly and again parallel with Lenox Avenue, 99.92 feet (99 feet 11 inches) partly through a party wall, to the southerly side of W. 130th Street; and

THENCE westerly along the southerly side of W. 130th Street, 50 feet to the point or place of BEGINNING.

The premises is known in the County of New York, State of New York, as Block 1727, Lot 67 (Old Lots 67 and 68), and shall be offered as a whole and sold off to the highest bidder under the following terms:

Subject to any facts that an inspection of the premises would disclose; any state of facts that an accurate survey of the premises would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record; any building and zoning ordinances of the municipality in which the premises is located and possible violations of same; any rights of any tenants or persons in possession of the premises; prior liens of record, if any, except those liens addressed in section 1354 of the Real Property Actions and Proceedings Law; and any equity of redemption of the United States of America to redeem the premises within 120 days from the date of sale.

Subject also to every other term of said Judgment and the terms of sale.

As more particularly described in the Judgment, the amount due as per the Referee's Report is the sum of \$1,513,137.16 with interest, together with advances as provided for in the Note and Mortgage with interest, costs and disbursements of \$1,415.00, and attorney fees of \$20,000 with interest.

A copy of the terms of sale can be obtained from Mark A. Slama, Esq. or Amanda A. Meehan, Esq., c/o Windels Marx Lane & Mittendorf, LLP, 156 West 56th Street, 23rd Floor, New York, New York 10019, telephone (212) 237-1000, attorneys for Plaintiff.

Dated: May 11, 2026
New York, New York

WINDELS MARX LANE & MITTENDORF, LLP

By: /s/ Amanda A. Meehan
Amanda A. Meehan
156 West 56th Street
New York, New York 10019
Tel.: (212) 237-1000
Attorneys for Plaintiff

TO:

Percival A. Clarke, Esq.
10 Fiske Place, Suite 402
Mount Vernon, New York 10550
Attorneys for Defendant
PFC Astor Row Housing Development Fund
Corporation

NYS Department of Taxation and Finance
Attn: Office of Counsel
Building 9
W A Harriman Campus
Albany, New York 12227
Defendant

Joy Tolulope Anakhu, Esq.
New York City Law Department
100 Church Street, Floor 3
New York, New York 10007
Attorneys for Defendant
City of New York, acting through its
Department of Housing Preservation and
Development

NYC Department of Finance
66 John Street, 2nd Floor
New York, New York 10038
Defendant

NYC Environmental Control Board
66 John Street, 10th Floor
New York, New York 10038
Defendant

Christy M. Demelfi, Esq.
2280 Grand Avenue, Suite 202
Baldwin, New York 11510
Court-Appointed Referee